

2010 WL 1812723 (N.Y.Sup.) (Trial Pleading)
Supreme Court of New York.
Bronx County

Sarabjeet PERSAUD, Plaintiff,

v.

THE CITY OF NEW YORK; Commissioner Raymond W. Kelly; P.O. Robyn Kreppel, Shield #05420; P.O. Vincint Trozzi; P.O. John Does #1-20; the individual defendants sued individually and in their official capacity, Defendants.

No. 303266-2010.
April 22, 2010.

To the above named defendants: You are hereby summoned to answer the complaint in this action, and to serve a copy of your answer or, if the complaint is not served with this summons, to serve a notice of appearance on the plaintiff's attorney within twenty days after service of this summons exclusive of the day of service where service is made by delivery upon you personally within the state, or within thirty days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

Dated: Brooklyn, New York April 22, 2010

Summons

[Michael P. Kushner](#), Esq., 155 Water Street, The Green Desk Building, Brooklyn, New York 11201, 212.202.2634, [Michael Peter Kushner](#), Esq., Attorney for Plaintiff.

COMPLAINT

Jury Trial Demanded

Plaintiff **SARABJEET PERSAUD**, by and through his counsel, Michael O. Hueston, Javier A. Solano, and Michael P. Kushner, upon information and belief, alleges as follows:

PRELIMINARY STATEMENT

1. This is a civil rights, common law, and tort action in which plaintiff seeks relief for the violation of his rights secured by the laws of the State of New York; New York state constitution, Article I, SS Six, Eight, Eleven, Twelve, and Fourteen; [42 U.S.C. SS 1981, 1983, 1985, 1986, and 1988](#); and the first, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution. The claims arise from an incident(s), which occurred on or about February 14, 2009. During the incident, defendants CITY OF NEW YORK, COMMISSIONER RAYMOND W. KELLY, P.O. ROBYN KREPPEL, SHIELD #05420, P.O. VINCINT TROZZI and other, as yet unknown, members of the New York City Police Department ("NYPD") subjected plaintiff to, among other things: false arrest and imprisonment, excessive force, assault and battery, unlawful search and seizure, malicious prosecution, retaliation for free speech, conspiracy, abuse of process, gross negligence, intentional and negligent infliction of emotional distress, negligent hiring and retention of incompetent and unfit employees, negligent supervision, training and instruction of employees, and implementation and continuation of an unlawful municipal policy, practice, and custom. Plaintiff seeks compensatory and punitive damages, declaratory relief, an award of costs and attorney's fees, and such other and further relief as the Court deems just and proper.

JURISDICTION & VENUE

2. That on or about March 17, 2009 the plaintiff duly served upon defendant CITY OF NEW YORK, a Notice of Claim in writing setting forth the name and post office address of plaintiff, the nature of the claim, the time when, the place where and the manner in which the claim arose and the items of damage or injuries claimed.
3. More than 30 days have elapsed since the demand and/or claim upon which this action is predicated against the defendant was presented to defendant CITY OF NEW YORK for adjustment and/or payment thereof, and it has neglected and/or refused to make any adjustment and/or payment.
4. That no hearing pursuant to [50-H of the General Municipal law](#) was requested by defendant CITY OF NEW YORK.
5. That no physical examination of plaintiff was requested by defendant CITY OF NEW YORK.
6. That this action is being commenced within one year and ninety days of the date of the occurrence herein.
7. Venue is proper in the Supreme Court of the State New York, Bronx County, because the acts in question occurred in the State of New York, Bronx County, and the CITY OF NEW YORK is subject to personal jurisdiction in Supreme Court of the State New York, Bronx County.

PARTIES

8. Plaintiff **SARABJEET PERSAUD** was at all times relevant and currently is a resident of Bronx County, State of New York.
9. At all times relevant defendant CITY OF NEW YORK, was a municipal corporation duly organized, authorized and existing under and by virtue of the laws of the State of New York.
10. At all times relevant, defendant CITY OF NEW YORK maintained a police department known as the NYPD.
11. At all times relevant, defendant COMMISSIONER RAYMOND W. KELLY was employed by the defendant CITY OF NEW YORK as the head of the NYPD, with an office located in New York, New York.
12. At all times relevant, defendant P.O. ROBYN KREPPEL, SHIELD #05420 was a duly appointed and acting police officer and employed by the NYPD and assigned to the 44th Precinct, located in Bronx, New York.
13. At all times relevant, defendant P.O. VINCINT TROZZI was a duly appointed and acting police officer and employed by the NYPD and assigned to the 44th Precinct, located in Bronx, New York.
14. At all times relevant, defendant P.O. JOHN DOES #1-20, unidentified persons, were duly appointed and acting police officers and employees of the NYPD and assigned to the 44th Precinct, located in Bronx, New York, or other as yet unknown NYPD assignments.
15. At all times relevant, the individual defendants were acting under color of State Law.
16. At all times relevant, the individual defendants were acting pursuant to their authority as NYPD employees. Notwithstanding their unconstitutional and unlawful conduct, the actions of the individual defendants were taken in the course of their duties and were incidental to their otherwise lawful function as agents, servants and employees of the NYPD.

17. The individual defendants are sued in their individual and official capacities.

CAUSES OF ACTIONS

False Arrest and Imprisonment, Unlawful Search and Seizure

18. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

19. On or about February 14, 2009, at approximately 2:20 a.m. in the vicinity 167th Street and Morris Avenue, Bronx, New York, the 44th Precinct and Lincoln Hospital, plaintiff was, without just cause or provocation maliciously, recklessly, negligently and/or intentionally falsely arrested, handcuffed and imprisoned causing serious and permanent physical and emotional injury to plaintiff.

20. That at the time and place aforesaid, the defendants, individually and/or by their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally falsely arrested, handcuffed and imprisoned plaintiff causing serious and permanent physical and emotional injury.

21. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, negligent, and/or intentional conduct of the defendants, individually and/or by their agents, servants and/or employees, without any provocation on the part of plaintiff, contributing thereto.

22. That solely by reason of these malicious reckless, negligent and/or intentional acts of the defendants, its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised and disabled, received severe, serious and permanent physical and psychological, emotional and social harm experienced great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in the future, has been unable to attend his usual occupation and avocation in the manner required and has suffered damages as a result, and in other ways sustained a loss of diverse sums of money.

23. Once defendants seized plaintiff, he was not free to disregard the defendants' questions, walk away or leave the scene.

24. Defendants illegally arrested plaintiff without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that plaintiff (or any third person) had committed a crime and falsely arrested plaintiff.

25. Thereafter, plaintiff was taken into custody by defendants without consent, an arrest warrant, a lawful search warrant, probable cause, or reasonable suspicion to believe that plaintiff (or any third person) had committed a crime and remained in the custody of defendants against his will for an extended period of time.

26. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Assault and Battery, Excessive Force

27. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

28. On or about February 14, 2009, at approximately 2:20 a.m. in the vicinity 167th Street and Morris Avenue, Bronx, New York, the 44th Precinct and Lincoln Hospital, plaintiff was, without just cause or provocation maliciously, recklessly, negligently and/or intentionally assaulted, battered and abused and subjected to excessive force causing serious and permanent physical, psychological, emotional and social harm to plaintiff.

29. That at the time and place aforesaid, the defendants, individually and/or by their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally assaulted, battered and abused plaintiff and subjected him to excessive force, causing serious and permanent physical, psychological, emotional and social harm to plaintiff.

30. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, negligent, and/or intentional conduct of the defendants, individually and/or by their agents, servants and/or employees, without any provocation on the part of plaintiff, contributing thereto.

31. During the arrest of plaintiff, defendants committed excessive force against plaintiff by maliciously, gratuitously, and unnecessarily striking plaintiff in the back of the head, repeatedly striking plaintiff about the face and body, kicking plaintiff in the mouth and jaw, and subjecting plaintiff to excessively tight handcuffs.

32. The individual defendants did not have an objective and/or reasonable basis to use any degree of force against plaintiff, since plaintiff was unarmed, compliant, did not resist arrest, and the officers used force against plaintiff without informing him that he was being arrested or detained.

33. Those defendants who did not touch plaintiff witnessed the assault, battery, abuse and excessive force of plaintiff but did nothing to intervene and protect plaintiff from this unlawful activity, notwithstanding the fact that these defendants had a duty to do so.

34. That solely by reason of these malicious reckless, negligent and/or intentional acts of the defendants, its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised and disabled, received severe, serious and permanent physical and psychological, emotional and social harm experienced great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in the future, has been unable to attend his usual occupation and avocation in the manner required and has suffered damages as a result, and in other ways sustained a loss of diverse sums of money.

35. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Malicious Prosecution

36. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

37. While plaintiff was incarcerated at the 44th Precinct and Lincoln Hospital, defendants pursuant to a conspiracy, falsely and maliciously told the Bronx County District Attorney's Office that plaintiff had committed a crime; and based on the these false allegations the Bronx County District Attorney's Office initiated a prosecution against plaintiff under Criminal Docket #2009BX010810.

38. The defendants intentionally, knowingly and purposely provided false statements and information to cause plaintiff to be prosecuted, to cover up that they stopped plaintiff without probable cause or reasonable suspicion and that excessive force had been used without reasonable cause or justification.

39. The defendants initiated the above-stated malicious prosecution against plaintiff.

40. The defendants lacked probable cause to believe the above-stated malicious prosecutions could succeed.

41. The defendants acted with malice by initiating the above-stated malicious prosecutions, to cover up that they stopped plaintiff without probable cause or reasonable suspicion and that excessive force had been used without reasonable cause or justification.

42. The above-stated malicious prosecution caused a sufficient post-arraignment liberty restraint on plaintiff.

43. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Failure to Supervise

44. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

45. The supervisor defendants supervised subordinate individual defendants concerning the above-mentioned unlawful acts against plaintiff, and approved the unlawful acts against plaintiff.

Negligent Supervision, Hiring, Monitoring Training and Retention of Unfit Employees

46. Plaintiff repeats and realleges each and every allegation contained in the foregoing paragraphs, with the same force and effect as if more fully set forth herein.

47. At all times hereinafter mentioned, defendant CITY OF NEW YORK maintained a police force known as the NYPD.

48. At all times hereinafter mentioned, defendant CITY OF NEW YORK by the NYPD, its agents, servants and/or employees, carelessly, negligently, and recklessly hired applicants for the position of police officers.

49. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, by the NYPD, its agents, servants and/or employees, carelessly, negligently, and recklessly trained applicants for the position of police officers.

50. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, by the NYPD, its agents, servants and/or employees, carelessly, negligently, and recklessly supervised, controlled, managed, maintained and inspected the activities of its police officers.

51. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, by the NYPD, its agents, servants and/or employees caused, permitted and allowed its police officers to act in an illegal, unprofessional, negligent and/or deliberate manner in carrying out its official duties and/or responsibilities.

52. At all times hereinafter mentioned, defendant, CITY OF NEW YORK, by the NYPD, its agents, servants and/or employees, carelessly, negligently, and recklessly retained in its employ, police officers clearly unfit for the position who acted in an illegal unprofessional, negligent and/or deliberate manner in carrying out their official duties and/or responsibilities.

53. On or about February 14, 2009 at approximately 12:20 a.m., in the vicinity of 167th Street and Morris Avenue, Bronx, New York, the 44th Precinct and Lincoln Hospital, plaintiff was without just cause or provocation, maliciously recklessly, negligently and/or intentionally assaulted, falsely arrested, handcuffed and imprisoned, causing serious and permanent personal injury to plaintiff.

54. At the time and place aforesaid, the defendant CITY OF NEW YORK by the NYPD, its agents, servant and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally assaulted, falsely arrested, handcuffed and imprisoned plaintiff causing serious and permanent personal injury to plaintiff.

55. The occurrence and injuries sustained by plaintiff, were caused solely by, and as a result of the malicious, reckless, negligent, and/or intentional conduct of the defendant CITY OF NEW YORK by the NYPD, its agents, servants and/or employees, as set

forth above, without provocation on the part of the plaintiff contributing thereto, specifically, the negligent and reckless manner in which said defendant hired, trained, supervised, controlled, managed, maintained, inspected and retained its police officers.

56. Solely by reason of these malicious, reckless, negligent and/or intentional acts of the defendants, its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised and disabled, received severe and serious psychological, emotional and social harm experienced great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in the future; has been unable to attend his usual occupation and avocation in the manner required and has suffered damages as a result, and in other ways sustained a loss of diverse sums of money.

57. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Intentional And Negligent Infliction Of Emotional Distress

58. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

59. On or about February 14, 2009, at approximately 2:20 a.m. in the vicinity 167th Street and Morris Avenue, Bronx, New York, the 44th Precinct and Lincoln Hospital, plaintiff was, without just cause or provocation maliciously, recklessly, negligently and/or intentionally assaulted, battered and abused and subjected to excessive force, falsely arrested, handcuffed and imprisoned, causing serious and permanent physical, psychological, emotional and social harm to plaintiff.

60. That at the time and place aforesaid, the defendants, individually and/or by their agents, servants and/or employees, without just cause or provocation, maliciously, recklessly, negligently and/or intentionally assaulted, battered and abused plaintiff and subjected him to excessive force, falsely arrested, handcuffed and imprisoned, causing serious and permanent physical, psychological, emotional and social harm to plaintiff.

61. That the occurrence and injuries sustained by plaintiff were caused solely by the malicious, reckless, negligent, and/or intentional conduct of the defendants, individually and/or by their agents, servants and/or employees, without any provocation on the part of plaintiff, contributing thereto.

62. That by virtue of the occurrence and the defendants, individually and/or by their agents, servants and/or employees, negligently and/or intentionally inflicted emotional harm upon plaintiff.

63. That solely by reason of these malicious reckless, negligent and/or intentional acts of the defendants, its agents, servants and/or employees, plaintiff became and was rendered sick, sore, lame, bruised and disabled, received severe, serious and permanent physical and psychological, emotional and social harm experienced great pain and suffering, incurred expenses as a result and will necessarily incur similar expenses in the future, has been unable to attend his usual occupation and avocation in the manner required and has suffered damages as a result, and in other ways sustained a loss of diverse sums of money.

64. The defendants' actions against plaintiff were extreme and outrageous and caused plaintiff severe emotional distress.

65. The defendants breached a duty owed to the plaintiff, which either unreasonably endangers the plaintiff's physical safety, or causes the plaintiff to fear for his own safety.

66. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Negligence, Gross Negligence Claims

67. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

68. The defendants owed the plaintiff a cognizable duty of care as a matter of law, and breached that duty.

69. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Abuse of Process

70. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

71. The defendants issued process with intent to harm the plaintiff without justification, and the perverted use of otherwise legal process to obtain a collateral objective.

72. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Punitive Damages – Individual Defendants

73. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

74. That the aforesaid occurrence and resulting injuries to plaintiff were due to the willful, wanton, reckless and/or malicious conduct of the defendants, individually and/or by their agents, servants and/or employees.

75. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, individually and/or by their agents, servants and/or employees which reflects utter indifference to the safety of others and specifically the safety of plaintiff.

76. That the aforesaid occurrence and resulting injuries to plaintiff were due to the conduct of defendants, individually and/or by their agents, servants and/or employees which reflects conscious disregard for the safety of others and specifically the safety of plaintiff.

77. That the conduct of defendants, individually and/or by their agents, servants and/or employees exhibited a reckless disregard for human life and safety and more particularly, for the life and safety of plaintiff.

78. By the foregoing, plaintiff has been damaged and should be awarded punitive damages in an amount to be determined at trial, because defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

Federal Civil Rights Violations - Individual Defendants

79. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

80. The conduct of the individual defendants, as described herein, violated plaintiff's rights under the laws of the State of New York; New York State Constitution, Article I, §§ Six, Eight, Eleven, Twelve, and Fourteen; 42 U.S.C. §§ 1983, 1985(3), 1986, and 1988; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution, amounting to the following civil rights violations: false arrest, excessive force, unlawful search and seizure, malicious prosecution, retaliation for free speech, conspiracy, and implementation and continuation of an unlawful municipal policy, practice, and custom.

81. The individual defendants acted under pretense and color of state law and their individual and official capacities and within the scope of their employment. Said acts by said defendants were beyond the scope of their jurisdiction, without authority or law, and in abuse of their powers, and said defendants acted willfully, knowingly, and with the specific intent to deprive plaintiff of his rights secured by the laws of the State of New York; New York State Constitution, Article I, §§ Six, Eight, Eleven, Twelve, and Fourteen; 42 U.S.C. §§ 1983, 1985, 1986, and 1988; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

82. As a direct and proximate result of the misconduct and abuse detailed above, plaintiff experienced personal and physical injuries, pain and suffering, fear, an invasion of privacy, psychological pain, emotional distress, mental anguish, embarrassment, humiliation, and financial loss.

83. The plaintiff is also entitled to receive punitive damages because the individual defendants' actions were motivated by extreme recklessness and indifference to the plaintiff's rights.

84. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction.

Federal Civil Rights Violations – Municipal Defendant

85. Plaintiff repeats and realleges all the foregoing paragraphs as if the same were fully set forth at length herein.

86. The CITY OF NEW YORK directly caused the constitutional violations suffered by plaintiff by the implementation and continuation of an unlawful municipal policy, practice, and custom.

87. The aforesaid events were not an isolated incident. Defendant CITY OF NEW YORK was aware prior to the incident that the individual defendants lacked the objectivity, temperament, maturity, discretion, and disposition to be employed as officers and would violate individuals' civil rights.

88. The CITY OF NEW YORK failed to adequately investigate prior complaints against the individual defendants and created a culture where officers can harass, assault and violate individuals without consequence. Indeed, when individuals file complaints against officers, the City has a practice of failing to substantiate or address the complaint, even under circumstances where the complaint is corroborated and credible, and the account given by the officer is unworthy of belief.

89. The aforesaid conduct by the CITY OF NEW YORK violated plaintiff's rights under the laws of the State of New York; New York State Constitution, Article I, §§ Six, Eight, Eleven, Twelve, and Fourteen; 42 U.S.C. §§ 1983, 1985, 1986, and 1988; and the First, Fourth, Fifth, Sixth, and Fourteenth Amendments to the United States Constitution.

90. By reason of the foregoing, plaintiff has been damaged in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction

Respondeat Superior

91. Plaintiff repeats and realleges each and every allegation contained in the paragraphs set forth above, with the same force and effect as if more fully set forth herein.

92. Defendant CITY OF NEW YORK is responsible for its employees' actions under the doctrine of respondeat superior.

WHEREFORE, plaintiff demands judgment against defendants, individually and/or collectively in an amount that exceeds the jurisdiction of all lower courts that would otherwise have jurisdiction as to the above-stated cause of action; punitive damages in an amount to be determined at trial as and for the above-stated causes of action; together with costs and disbursements of this action and legal fees pursuant to [42 U.S.C. § 1988](#).

Dated: Brooklyn, New York April 22, 2010

JAVIER A. SOLANO, ESQ.

Attorney for Plaintiff

507 Willis Avenue

Bronx, New York 10455

718.665.3200

MICHAEL P. KUSHNER, ESQ.

Attorney for Plaintiff

155 Water Street

Brooklyn, New York 11201

212.202.2634

BY:

Michael P. Kushner, Esq.

MICHAEL O. HUESTON, ESQ.

Attorney for Plaintiff

350 5th Ave., Ste. 4810

New York, New York 10118

212.643.2900

End of Document

© 2015 Thomson Reuters. No claim to original U.S. Government Works.